

ANTI-CORRUPTION POLICY

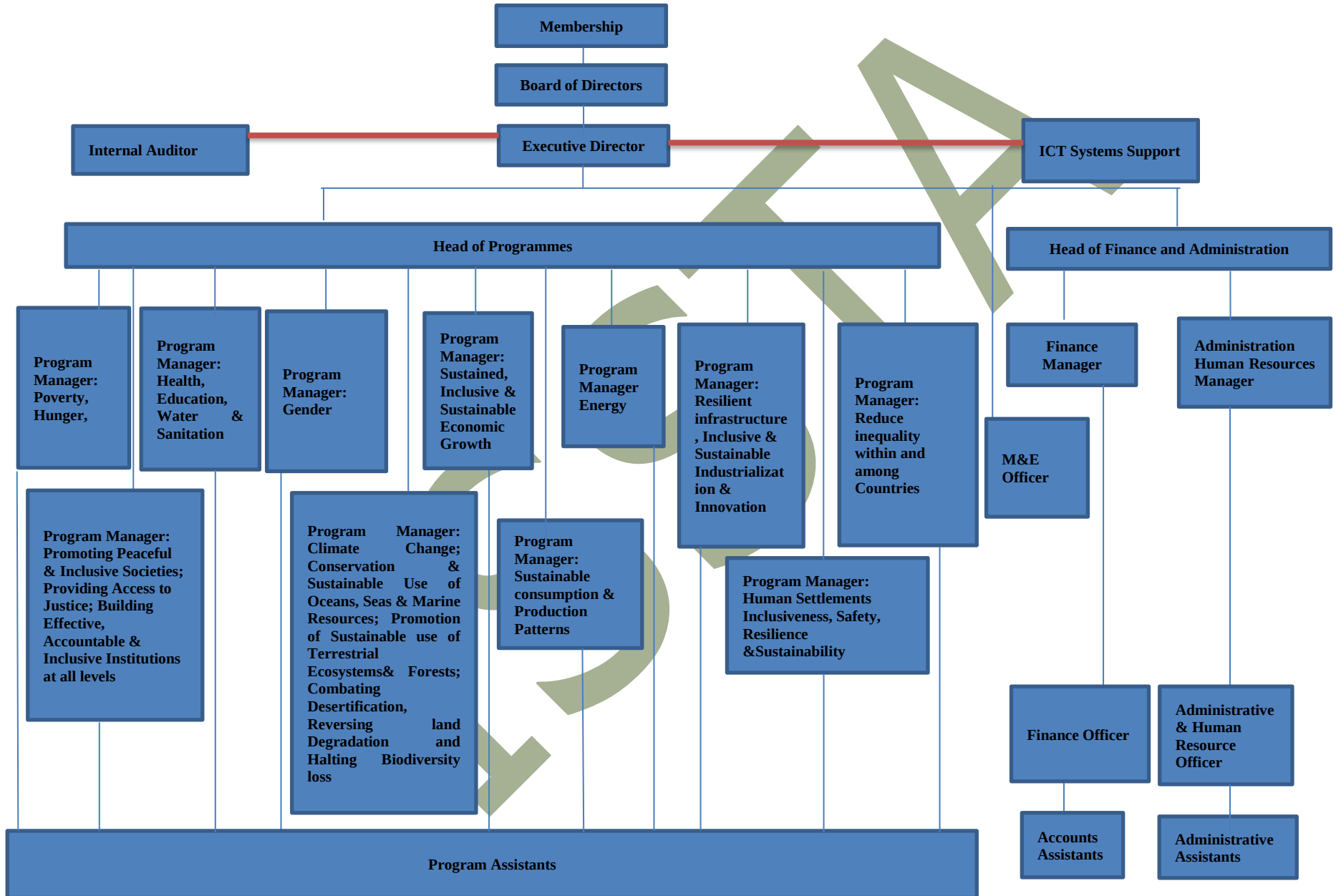
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ISSTA Organogram



ISSSTA

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TABLE OF CONTENTS		
No.	Particulars	Page
	ORGANOGRAM OF ISSTA	ii
	TABLE OF CONTENTS	2
	ISSTA VISION, MISSION, VALUES, TARGET GROUPS, AND OBJECTIVES	3
	DEFINITION OF TERMS	4
	APPLICABLE NATIONAL ANTI-CORRUPTION LAWS	5
1.0	Purpose and Key Objective of the Policy	6
2.0	Scope	6
3.0	Policy Direction	6
4.0	Charitable Donations	7
5.0	Political Activities	7
6.0	Business Relationships	7
7.0	Willful Blindness	8
8.0	Blackmail and Extortion	8
9.0	Expected Staff Response to Policy	8
10.0	The Accounting Provisions	8
11.0	Record keeping	9
12.0	Implementation	9
13.0	Whistle Blowers	9
14.0	Waiver	9

ISSTA VISION, MISSION, VALUES, TARGET GROUPS, AND OBJECTIVES

ISSTA Vision

A world prospering in Sustainable Development, poised to cater for present and future generations

ISSTA Mission

Contributing to Sustainable Development of Africa through local, regional, continental and global frameworks

ISSTA Values

ISSTA embraces the values of Team Work, Solidarity, Results Achievement, Accountability, Value for Money, Not Leaving Anyone Behind, Do no Harm, Respect for all Persons, and Shared Responsibility

ISSTA Target Groups

Development stakeholders ranging from ordinary citizens (primary beneficiaries'/rights holders), local and central government (duty bearers), regional and international development agencies (partners)

ISSTA Key Objective

To support localization of sustainable development in selected locations of Uganda and Africa

ISSTA Specific Objectives

- (i) To build economically feasible non-partisan grassroots structures working towards food and nutrition security and market competitiveness
- (ii) To mainstream women, girls, youth, climate justice, health justice, PWDs, men, and deprived persons issues into activities of grassroots socioeconomic structures
- (iii) To build grass roots civic engagement capacities within grassroots structures and local civil society towards quality service provision by duty bearers, human rights observance, democracy and accountability

DEFINITION OF TERMS

Corruption – It occurs when an individual misuses their position of trust or power in order to receive some gain or advantage for themselves or for another person

Facilitated payment – means to hasten the pace of a payment process by providing an inducement to the responsible person usually a government official (since government in Uganda is the most substantive business partner to all sectors) in order to expedite a

routine or non-discretionary function that the government official is ordinarily obliged to perform in the circumstances.

Government official – this person can be a member of: the executive, civil service machinery including Ministries, Departments, Agencies, Police and all other security agencies; local government machinery; and the legislature.

Publics – these are ordinary citizens, women and men from the: business sector; civil society organizations and faith-based organizations; farmers, commercial sector actors, industrialists, artisans, MSMEs; partisan organizations; and international publics.

Bribery – it is about giving and or soliciting money, gifts or benefits with the purpose of gaining an advantage over others.

APPLICABLE NATIONAL ANTI-CORRUPTION LAWS

ISSTA will operate in the confines of national laws and in this respect, relating to corruption, are as below:

- (i) Anti-Corruption Act 2009
- (ii) The Penal Code 1950
- (iii) The Inspectorate of Government Act 2002
- (iv) The Public Finance Management Act 2015
- (v) Leadership Code Act 2002
- (vi) Any other Act/policies as may be notified by the Government of Uganda from time to time

1.0 Purpose and Key Objective of the Policy

The Anti-corruption policy is meant to contribute to prudent use of resources, promotion of good values and institutional credibility at ISSTA as well as the global anticorruption campaign.

2.0 Scope

This policy applies to ISSTA BoDs, staff, and stakeholders in the course of interfaces in achievement of various objectives.

3.0 Policy Direction

ISSTA outlaws' corruption in all its forms including but not limited to:

- (i) Bribes in the form of offering gifts, facilitation payments, and offer or promise of employment
- (ii) Involvement in illegal business practices
- (iii) Soliciting or receiving money from service providers, government officials or development partners
- (iv) Staff transacting of behalf should insist on official receipts
- (v) Staff should report demand for facilitation payments to immediate internal ISSTA supervisors for action and with one of the actions being reported the matter to soliciting officer's supervisor
- (vi) Offer of entertainment by service providers, development partners and ISSTA stakeholders'
- (vii) Conflict of interest - staff must avoid situations or transactions in which their personal interests could conflict or might be seen to conflict with the interests of ISSTA
- (viii) Exceptions will occur for gifts openly received by staff on behalf of ISSTA; Gifts offered to individuals of a value less than Ugx500,000 which may include calendars, pens, etc. say at the marking of staff birthdays, weddings, and other anniversaries; business meals with potential development partners and government officials whose agenda is the advancement of ISSTA. However, such

arrangements should occur in the knowledge and approval of the ED/PD/FAM/PM whoever is conversant and available for consultation.

4.0 Charitable Donations

As part of its networking and collaboration, ISSTA may support local charities in various ways including payment of membership fees. It will also participate in national and international celebrations by joining the various sector partners in limited expenditures and physical participation. Any such support will be appropriately accounted for and kept transparent.

and commemoration of international events. Any such support must be transparent and properly documented. ISSTA will only provide donations to organizations that serve a legitimate public purpose, and which are themselves subject to high standards of transparency and accountability.

5.0 Political Activities

ISSTA is a non-partisan, non-state agency and cannot and will not express support for political party. It will engage in civic and voter education to advance awareness and empowerment enabling citizens to be jubilant in advocating and exercising their civic, voter, and social accountability rights.

However, ISSTA understands that staff are individually entitled to civic rights and responsibilities. In this light, staff are entitled to vote leaders of their own choice and well as participate in governance forums as individuals outside ISSTA activities. Staff are not allowed any political activity while on ISSTA premises and on official duty.

In the vein of being non-partisan, ISSTA will engage in advocacy work towards perfecting Uganda's political and civic space in achievement of fundamental freedoms and the flourishing of a democratic society.

6.0 Business Relationships

ISSTA will transact commercially with the private sector under procurement arrangements as specified in the ISSTA procurement policy. ISSTA will not transact in illegal business nor allow

commercialists to corrupt it staff. In case a staff knowingly engages ISSTA in illegal business and trade the act will be punishable by disciplinary action.

7.0 Willful Blindness

If a staff willfully ignores or turns a blind eye to any evidence of corruption or bribery within his / her department and/or around him / her, it will also be taken against that employee. Although such conduct may be “passive”, i.e., the employee may not have directly participated in or may not have directly benefited from the corruption or bribery concerned, the willful blindness to the same can, depending upon the circumstances, carry the same disciplinary action as an intentional act.

8.0 Blackmail and Extortion

ISSTA remains committed to its policy of not making cooperating with black mail and extortionists. However, in life threatening contexts, staff are strongly advised not to fight for any money or assets that the extortionist or black mailer is demanding. In the face of upcoming black mail or extortion, staff are encouraged to report to their supervisors and or the police. If possible, staff should acquaint themselves with the skill of secretly recording footage because of course it provides evidence in the matter.

9.0 Expected Staff Response to Policy

- (i) Reading and comprehending the policy - Every staff must read, understand, and comply with this Policy. If any staff finds grey areas, they can freely consult their line manager or the ED
- (ii) Compliance - Staff are required to comply with policy stipulations as well as report acts of corruption to line managers or the ED.
- (iii) Consequence – Policy breach by staff will culminate into disciplinary action or dismissal. ISSTA reserves the right to terminate any contractual relationship with any staff who breaches policy.

10.0 The Accounting Provisions

The accounting provisions of ISSTA require that (i) ISSTA books, records, and accounts accurately reflect the organization transactions; (ii) ISSTA devises and maintains a system of

internal accounting controls sufficient to provide reasonable assurances that financial statements and other public disclosures are accurate; (iii) access to assets is limited to management's authorization; and (iv) recorded accountability for assets is compared with existing assets at reasonable intervals and appropriate action is taken regarding any discrepancies. These provisions impose criminal liability on individuals who knowingly circumvent or fail to implement a system of internal controls, or knowingly falsify any books, records or accounts.

11.0 Record keeping

ISSTA staff must ensure that all expenses claims relating to hospitality, gifts or expenses incurred to Third Parties are submitted in accordance with our expenses policy and specifically record the reason for the expenditure. All accounts, invoices, memoranda and other documents and records relating to dealings with third parties, such as beneficiaries, service providers and development partners, should be prepared and maintained with strict accuracy and completeness. No accounts will be kept "off-book" to facilitate or conceal improper payments and the same is ensured through effective monitoring and auditing mechanisms in place.

12.0 Implementation and compliance

The policy will be implemented by the secretariat with ED as team leader. Compliance with the requirements of this Policy by the staff would be considered during the staff appraisal exercise. Anyone who misleads or hinders investigators inquiring into potential violations of this Policy will be subject to disciplinary action. In all cases, disciplinary action may include termination of employment.

13.0 Whistle Blowers

These will be identified within the organization and among stakeholders including suppliers, trained and positioned. They will report to the ED.

14.0 Waiver

No waiver exists